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PYS835

Pike County Prothonotary's Office
Docket Entries

Page 1
9/23/2026

Cover Sheet

Case No 2025-00828

Plaintiff:
DESANTIS KELLI

** (VS) **

Defendant:
COMMONWEALTH OF PENNSYLVANIA DEPARTMENT OF TRANSPORTATION

Case No 2025-00828
KELLI DESANTIS (VS) COMMW OF PA DEPT OF TRANS

Date
Filed

FIRST ENTRY

1 6/16/25 PETITION FOR APPEAL FROM SUSPENSION OF OPERATING PRIVILEGE/DENIAL
OF DRIVERS LICENSE FILED OGCT 3CATTY

009 Image page(s) exist(s) for this entry

2 6/23/25 ORDER OF COURT FILED SCHEDULING A HEARING FOR OCTOBER 8 2025 AT
1:30PM IN THE PIKE COUNTY COURTHOUSE

001 Image page(s) exist(s) for this entry

3 6/23/25 EXIT COPIES TO ALL PARTIES BY REGULAR MAIL OR OFFICE MAILBOXES

4 10/09/25 ORDER OF COURT FILED CONTINUING THE LICENSE SUSPENSION APPEAL
HEARING TO FEBRUARY 6 2026 AT 1:30PM IN THE PIKE COUNTY COURTHOUSE

001 Image page(s) exist(s) for this entry

5 10/09/25 EXIT COPIES TO ALL PARTIES BY REGULAR MAIL OR OFFICE MAILBOXES

6 2/06/26 ORDER OF COURT FILED CONTINUING THE FEBRUARY 6 2026 HEARING TO JUNE
3 2026 AT 1:30PM IN THE PIKE COUNTY COURTHOUSE

001 Image page(s) exist(s) for this entry

7 2/06/26 EXIT COPIES TO ALL PARTIES BY REGULAR MAIL OR OFFICE MAILBOXES

8 5/14/26 MOTION FOR CONTINUANCE FILED OGCT 0CATTY

005 Image page(s) exist(s) for this entry

9 5/14/26 ORDER OF COURT FILED SCHEDULING A LICENSE SUSPENSION HEARING FOR
OCTOBER 14 2026 AT 1:30PM IN THE PIKE COUNTY COURTHOUSE

001 Image page(s) exist(s) for this entry

10 5/14/26 EXIT COPIES TO ALL PARTIES BY REGULAR MAIL OR OFFICE MAILBOXES

LAST ENTRY

Supreme Court of Pennsylvania

Court of Common Pleas Civil Cover Sheet



County Pike

For Prothonotary Use Only:

Docket No:

828-2025

TIME STAMP

The information collected on this form is used solely for court administration purposes. This form does not supplement or replace the filing and service of pleadings or other papers as required by law or rules of court.

SECTION A

Commencement of Action:

- ☐ Complaint ☐ Writ of Summons ☒ Petition
☐ Transfer from Another Jurisdiction ☐ Declaration of Taking

Lead Plaintiff's Name:

Kelli DeSantis

Lead Defendant's Name:

Commonwealth of PA, Dept. of Transportation

Are money damages requested? ☐ Yes ☒ No

Dollar Amount Requested: ☐ within arbitration limits
(check one) ☐ outside arbitration limits

Is this a Class Action Suit? ☐ Yes ☒ No

Is this an MDJ Appeal? ☐ Yes ☒ No

Name of Plaintiff/Appellant's Attorney: Nicholas J. McIntyre, Esq.

☐ Check here if you have no attorney (are a Self-Represented [Pro Se] Litigant)

Nature of the Case: Place an "X" to the left of the ONE case category that most accurately describes your **PRIMARY CASE**. If you are making more than one type of claim, check the one that you consider most important.

TORT (do not include Mass Tort)

- ☐ Intentional
☐ Malicious Prosecution
☐ Motor Vehicle
☐ Nuisance
☐ Premises Liability
☐ Product Liability (does not include mass tort)
☐ Slander/Libel/ Defamation
☐ Other:

CONTRACT (do not include Judgments)

- ☐ Buyer Plaintiff
☐ Debt Collection: Credit Card
☐ Debt Collection: Other

☐ Employment Dispute: Discrimination
☐ Employment Dispute: Other

☐ Other:

CIVIL APPEALS

- Administrative Agencies
☐ Board of Assessment
☐ Board of Elections
☒ Dept. of Transportation
☐ Statutory Appeal: Other

- ☐ Zoning Board
☐ Other:

OFFICE OF
PROTHONOTARY
CLERK OF COURTS
2025 JUN 16 AM 10:21
ENTERED FOR RECORD
PIKE COUNTY, PA

MASS TORT

- ☐ Asbestos
☐ Tobacco
☐ Toxic Tort - DES
☐ Toxic Tort - Implant
☐ Toxic Waste
☐ Other:

REAL PROPERTY

- ☐ Ejectment
☐ Eminent Domain/Condemnation
☐ Ground Rent
☐ Landlord/Tenant Dispute
☐ Mortgage Foreclosure: Residential
☐ Mortgage Foreclosure: Commercial
☐ Partition
☐ Quiet Title
☐ Other:

MISCELLANEOUS

- ☐ Common Law/Statutory Arbitration
☐ Declaratory Judgment
☐ Mandamus
☐ Non-Domestic Relations Restraining Order
☐ Quo Warranto
☐ Replevin
☐ Other:

PROFESSIONAL LIABILITY

- ☐ Dental
☐ Legal
☐ Medical
☐ Other Professional:

OR to Ct
3 C A H

OFFICE OF
PROTHONOTARY
CLERK OF COURTS
2025 JUN 16 AM 10:00
ENTERED FOR RECORD
PIKE COUNTY, PA

IN THE COURT OF COMMON PLEAS
PIKE COUNTY, PENNSYLVANIA

KELLI DESANTIS
Petitioner,

vs.

COMMONWEALTH OF PENNSYLVANIA,
DEPARTMENT OF TRANSPORTATION,
BUREAU OF DRIVER LICENSING,

Respondent.

NO. 828-2025
PETITION FOR APPEAL FROM
ORDER OF DEPARTMENT OF
TRANSPORTATION
SUSPENDING DRIVER'S
LICENSE

PETITION FOR APPEAL FROM A SUSPENSION OF OPERATING
PRIVILEGE/DENIAL OF DRIVER'S LICENSE

1. Appellant herein is Kelli DeSantis with a mailing address of [REDACTED] Dingmans Ferry, PA 18328.
2. Appellee herein is the Department of Transportation of the Commonwealth of Pennsylvania, having a mailing address of: Pennsylvania Department of Transportation, Bureau of Driver Licensing, Harrisburg, Pennsylvania 17123.
3. By letter or notice dated May 16, 2025, a copy of which is attached hereto as Exhibit "A", the Department of Transportation ordered Appellant to surrender her operating license effective June 20, 2025, at 12:01 p.m.
4. Pursuant to 75 Pa. C.S.A. §1550(b) - Supersedeas, Appellant is retaining driver's license until final determination of the suspension of operating privilege.
5. The said suspension of Appellant's operating privileges is improper or unlawful for the following reasons:

- a. Defendant's license was suspended as a result of violation of Section 1547 of the Vehicle Code, Chemical Test Refusal, and to suspend said license prior to final determination of the hearing would be in violation of Appellant's rights.

WHEREFORE Appellant respectfully requests that this matter be set for a hearing and that the Order of Suspension/Order of Denial be set aside.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'N. McIntyre', written over a horizontal line.

Nicholas J. McIntyre, Esquire
Attorney for Petitioner
410 Broad Street
Milford, PA 18337
(570) 296-7300

IN THE COURT OF COMMON PLEAS
PIKE COUNTY, PENNSYLVANIA

KELLI DESANTIS
Petitioner,

vs.

COMMONWEALTH OF PENNSYLVANIA,
DEPARTMENT OF TRANSPORTATION,
BUREAU OF DRIVER LICENSING,

Respondent.

NO.

828-2025

PETITION FOR APPEAL FROM
ORDER OF DEPARTMENT OF
TRANSPORTATION
SUSPENDING DRIVER'S
LICENSE

OFFICE OF
PROTHONOTARY
CLERK OF COURTS
2025 JUN 16 AM 11:00
ENTERED FOR RECORD
PIKE COUNTY, PA

I, Nicholas J. McIntyre, Esquire, hereby certify that pursuant to the Pennsylvania Rules of Civil Procedure 403 and 404 et seq., a true and correct copy of the above-referenced Petition for Appeal from a Suspension of Operating Privilege/Denial of Driver's License was served upon defendant, Pennsylvania Department of Transportation, Office of Chief Counsel, Third Floor, Riverfront Office Center, Harrisburg, PA 17104-2516, by Certified Mail, return receipt requested as indicated by the U.S. Postal Service Domestic Return Receipt attached and marked as Exhibit "A", on the 16th day of June, 2025.



Nicholas J. McIntyre Esq.
Attorney for Petitioner
Ohliger & McIntyre, LLC
410 Broad Street
Milford, PA 18337
(570) 296-7300

EXHIBIT "A"

COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF TRANSPORTATION
Bureau of Driver Licensing
Mail Date: MAY 16, 2025

KELLI DANIELLE DE SANTIS
[REDACTED]

DINGMANS FRY PA 18328

WID # 251296038172192 001
PROCESSING DATE 05/09/2025
DRIVER LICENSE # 29606923
DATE OF BIRTH 08/11/1977

Dear MS. DE SANTIS:

This is an Official Notice of the Suspension of your Driving Privilege as authorized by Section 1547B11 of the Pennsylvania Vehicle Code. As a result of your violation of Section 1547 of the Vehicle Code, CHEMICAL TEST REFUSAL, on 05/01/2025:

- Your driving privilege is SUSPENDED for a period of 1 YEAR(S) effective 06/20/2025 at 12:01 a.m.

COMPLYING WITH THIS SUSPENSION

You must return all current Pennsylvania driver's licenses, learner's permits, temporary driver's licenses (camera cards) in your possession by 06/20/2025. SURRENDERING THESE ITEMS PRIOR TO THIS DATE WILL NOT START YOUR SUSPENSION EARLY. You may not drive after these items are surrendered.

YOU MAY NOT RETAIN YOUR DRIVER'S LICENSE FOR IDENTIFICATION PURPOSES. However, you may apply for and obtain a photo identification card at any Driver License Center. You must present two (2) forms of proper identification (e.g., birth certificate, valid U.S. passport, marriage certificate, etc.) to obtain your photo identification card. For additional information relating to fees, visit www.dmv.pa.gov.

Complete the following steps to acknowledge this suspension.

1. Return all current Pennsylvania driver's licenses, learner's permits and/or camera cards to PennDOT. If you do not have any of these items, send a sworn notarized letter stating you are aware of the suspension of your driving privilege. You must specify in your letter why you are unable to return your driver's license. Remember: You may not retain your driver's license for identification purposes. Please send these items to:

Pennsylvania Department of Transportation
Bureau of Driver Licensing
P.O. Box 68693
Harrisburg, PA 17106-8693

251296038172192

2. Upon receipt, review and acceptance of your Pennsylvania driver's license(s), learner's permit(s), and/or a sworn notarized letter, PennDOT will send you a receipt. If you do not receive a receipt within three (3) weeks, please contact our office. PennDOT phone numbers are listed at the end of this letter.
3. If you do not return all current driver license products, we must refer this matter to the Pennsylvania State Police for prosecution under SECTION 1571(a)(4) of the Pennsylvania Vehicle Code.

PAYING THE RESTORATION FEES

You must pay a restoration fee and a chemical test refusal restoration fee to PennDOT to be restored from a suspension/revocation of your driving privilege. Payment can be made at anytime online at www.dmv.pa.gov or mailed to the address listed below. If mailing in payment, please include your driver license number on your check or money order and correspondence. A chemical test refusal restoration fee must be paid by certified check or money order.

Pennsylvania Department of Transportation
Bureau of Driver Licensing
P.O. Box 68273
Harrisburg, PA 17106-8273

The Restoration Fees are based on the Consumer Price Index and subject to change. For the current restoration fee amount(s) due, please visit PennDOT's website at www.dmv.pa.gov to obtain a copy of your restoration requirements letter. If you do not have internet access, please call PennDOT's Customer Care Center at 1-800-932-4600 to request a copy of your restoration requirements letter.

Please note: Paying the restoration fees DO NOT satisfy the requirement to acknowledge your suspension/revocation. If you have not acknowledged your suspension/revocation, please follow the instructions listed under "Complying with this Suspension/Revocation".

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IGNITION INTERLOCK

Before your driving privilege can be restored, you are required by law to install an Ignition Interlock System in any motor vehicle(s) you intend to operate and to make application for an Ignition Interlock Restricted License. If you do not own, intend to operate, or have any motor vehicle(s) registered, you are still required to make application for an Ignition Interlock Restricted License. This is a result of your Chemical Test Refusal violation. You will receive more information regarding this requirement approximately 30 days before your eligibility date.

IGNITION INTERLOCK LIMITED LICENSE

Pennsylvania law allows a licensed driver whose driving privilege has suspended or revoked because of driving under the influence or chemical test refusal to petition for an Ignition Interlock Limited License. An Ignition Interlock Limited License permits individuals to operate a motor vehicle(s) equipped with an ignition interlock system during the term, or part of the term, of their suspension or revocation. For information on eligibility requirements, please visit PennDOT's website at www.dmv.pa.gov. The information can be found by selecting "Information Centers", "suspensions", and "Ignition Interlock Limited License". Information can also be obtained by calling the PennDOT Customer Care Center at 1-717-412-5300. Please note that petitioning for an Ignition Interlock Limited License is not a restoration requirement; it is an option.

APPEAL

You have the right to appeal this action to the Court of Common Pleas (Civil Division) within 30 days of the mail date, MAY 16, 2025, of this letter. If you file an appeal in the County Court, the Court will give you a time-stamped certified copy of the appeal. In order for your appeal to be valid, you must send this time-stamped certified copy of the appeal by certified mail to:

Pennsylvania Department of Transportation
Office of Chief Counsel
1101 South Front Street
Third Floor, Riverfront Office Center
Harrisburg, PA 17104-2516

Remember, this is an OFFICIAL NOTICE OF SUSPENSION. You must return all current Pennsylvania driver license products to PennDOT by 06/20/2025.

251296038172192

Sincerely,

Diosdado Arroyo

Diosdado Arroyo, Director
Bureau of Driver Licensing

INFORMATION 8:00 a.m. to 5:00 p.m.

717-412-5300

WEB SITE ADDRESS

www.penndot.pa.gov